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BEFORE THE
FEDERAL MARITIME COMMISSION

FILED

JUN 14 2016

Informal Docket No 1921(I)

Federal Maritime Commission
Office of the Secretary

Adebisi A. Adenariwo,

Complainant,

v

BDP International et al.,

Respondents.

BRIEF OF RESPONDENT ZIM INTEGRATED SHIPPING SERVICES, LTD ON REMAND

Pursuant to the April 28, 2016 order of the Federal Maritime Commission, Respondent Zim Integrated Shipping Services, Ltd. ("Zim") hereby submits this brief on the issue of reparations to be awarded to complainant Adebisi A. Adenariwo ("Complainant") in this proceeding. In the interest of brevity, a procedural history of this docket is omitted.

I. Damages May Not Have Been Determined With Sufficient Certainty To Permit The Award of Reparations

Zim is concerned that the amount of damages sustained by Complainant may not have been determined with sufficient certainty to support the award of any reparations in this docket.

In this regard, the Commission has held that the amount of reparations "can be based on something less than precision but something based on reasonable approximation supported by evidence and reasonable inferences." *Kobel, et al. v Hapag-Lloyd AG, et al.*, 33 S.R.R. 594, 605

(ALJ 2014), aff'd __ S.R.R. __ (FMC May 26, 2015), citing *Tractors and Farm Equipment Ltd. v Cosmos Shipping Co, Inc*, 26 S.R.R. 788, 796 (ALJ 1992). The Commission has held that a summary of damages prepared by the president of the complainant, supported by minimal evidence, is an insufficient basis upon which to award reparations. *California Shipping Line, Inc. v Yang Ming Marine Transport Corp*, 25 S.R.R. 1213, 1230 (FMC 1990)

In this proceeding, it appears that the Settlement Officer never made any finding of fact with respect to the amount of the damages suffered by Complainant. See, Settlement Officer decision dated March 7, 2013, pp 14-15 The Commission decision which reviewed and affirmed the decision of the Settlement Officer also made no finding of fact with respect to the amount of damages suffered by the Complainant. 33 S.R.R. 223 (FMC 2014). To a large extent, it appears that the evidence of alleged loss is based on little more than assertions by the Complainant. Given this evidence and the apparent lack of any finding of fact as to the amount of damages suffered, it is not clear that there is a sufficient factual basis for the Commission to award any reparations.

II. As A Matter Of Law, Any Reparations Award Must Be Capped At \$50,000

This proceeding was initiated pursuant to the Commission's informal docket procedure, under which the amount of reparations recoverable by Complainant is limited to \$50,000 46 C.F.R. §502.301 The Complainant knew this and knowingly waived his right to recover reparations in excess of this amount. See, Small Claim Form in Informal Docket 1921(I) dated March 2, 2011, paragraph VI, Settlement Officer Decision of March 7, 2013, p 12. Moreover, Complainant's attempt to change this proceeding to a formal docket and recover a greater amount of damages was rejected by the Settlement Officer in her October 27, 2011 decision, which became administratively final when the Commission declined to review it. Thus, as a

matter of law under the Commission's regulations and the prior decisions in this docket, the amount of reparations awarded (if any) may not exceed \$50,000

Respectfully submitted,

A handwritten signature in cursive script, appearing to read "Wayne R. Rohde", is written over a horizontal line.

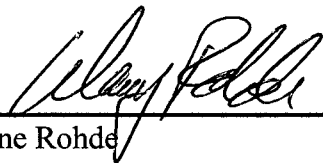
Wayne R. Rohde
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Suite 300
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Telephone (202) 463-2507
Email wrohde@cozen.com

June 14, 2016

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of June, 2016, a true and correct copy of the foregoing Brief on Remand was served, via first-class mail, postage prepaid, on.

Adebisi A. Adenariwo
15618 Plaid Drive
Laurel, MD 2707



Wayne Rohde



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FEDERAL MARITIME COMMISSION

June 14, 2016

VIA COURIER

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Ms. Karen V Gregory
Secretary
Federal Maritime Commission
Room 1046
800 North Capitol Street, N W
Washington, D C 20573

Re. Adenariwo v. BDP International, et al., FMC Docket No. 1921 (I)

Dear Ms. Gregory:

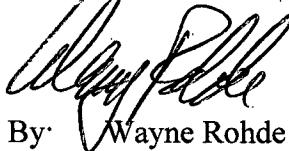
Enclosed herewith for filing are an original and five (5) copies of the Brief of Respondent Zim Integrated Shipping Services, Ltd. on Remand in the above-captioned proceeding. The brief is also being filed electronically

A copy of this letter and its enclosures has been provided for your acknowledgement of receipt.

Should you or the staff have any questions regarding this matter, please do not hesitate to contact the undersigned.

Sincerely,

COZEN O'CONNOR


By: Wayne Rohde